

25CV01513 Louis Orozco v. Phillip Andrew Decker, et al.

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-05-20

Motion: Motion to Compel

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Tentative Ruling: Louis Orozco v. Phillip Andrew Decker, et al.

Case Number

25CV01513

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 05/20/2026 - 10:00

Nature of Proceedings

Motion to Compel

Tentative Ruling

For Plaintiff Lous Orozco: Oliver A. Taillieu, Elizabeth A. Hernandez, Ashley M. Akhavan, BD&J P.C.

For Defendants Phillip Andrew Decker and Unico Engineering, Inc.: Craig J. Rolfe, Lydecker, LLP

RULING

For the reasons set forth below, the motion of Defendant to compel Plaintiff to serve further responses to requests for admission Nos. 7,8, and 9 is granted. Plaintiff shall provide further responses to the requests for admission, without objections, no later than June 1, 2026.

If any response to the requests for admissions is anything other than an unqualified admission, Plaintiff shall provide further responses to form interrogatory No. 17.1, without objections, no later than June 1, 2026.

Background

As alleged in the complaint of Plaintiff Louis Orozco:

On March 29, 2024, Plaintiff was on his bicycle traveling eastbound on Hollister Avenue when, at the same time and place, Phillip Andrew Decker, while in the course and scope of his employment with Unico Engineering Inc., (Unico) was operating a vehicle and exiting a driveway onto westbound Hollister Avenue. (Complaint, ¶ GN-1.) As Defendant Decker's vehicle turned onto Hollister Avenue, its left front corner struck the rear tire of Plaintiff's bicycle causing Plaintiff to fall to the ground and suffer severe injuries and damages. (Ibid.)

Plaintiff filed their complaint against Defendants Decker and Unico on March 11, 2025, alleging two causes of action: (1) general negligence; and (2) motor vehicle.

On May 1, 2025, Defendants each and separately filed their answers to Plaintiff's complaint, generally denying its allegations and asserting affirmative defenses.

On February 24, Decker filed a motion for an order compelling Plaintiff to provide further responses to set one requests for admission (RFAs), nos. 7 through 9, and a concurrently served form interrogatory (FI) no. 17.1

Plaintiff opposes the motion.

Analysis

"Civil discovery is intended to operate with a minimum of judicial intervention." (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 402.) "It is a central precept to the Civil Discovery Act . . . that civil discovery be essentially self-executing." (Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1434.)

"Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties." (Code Civ. Proc., § 2033.010, italics added.)

As noted above, Decker seeks further responses to RFAs Nos. 7, 8, and 9. Those RFA's ask Plaintiff to admit:

7. "You were riding your bicycle in violation of California Vehicle Code § 21650.1 immediately before the ACCIDENT occurred."

8. "You were riding your bicycle in violation of California Vehicle Code § 21650.1 within five seconds before the ACCIDENT occurred."

9. "You were riding your bicycle in violation of California Vehicle Code § 21650.1 at the time of the ACCIDENT."

"A bicycle operated on a roadway, or the shoulder of a highway, shall be operated in the same direction as vehicles are required to be driven upon the roadway." (Veh. Code, § 21650.1.)

Plaintiff responded to each of the RFAs:

"Plaintiff objects to this request on the grounds that it is vague and ambiguous as to the phrase 'in violation of.' Plaintiff further objects to this request on the grounds that it calls for a legal conclusion and it impermissibly seeks premature disclosure of expert witness testimony and work product, in violation and circumvention of Code of Civil Procedure section 2034.210, et seq. Plaintiff further objects to this request on the grounds that it seeks information protected by the attorney-client and attorney work-product privileges.

Subject to and without waiving the foregoing objections, Plaintiff responds as follows: Plaintiff admits that he was riding his bicycle eastbound in the westbound bicycle lane of Hollister Avenue within [time frame] before the ACCIDENT occurred."

Plaintiff's objections are without merit. His primary argument is that RFAs do not require a responding party to concede a disputed legal conclusion. The argument is a misstatement of long-standing law.

"[W]hen a party is served with a request for admission concerning a legal question properly raised in the pleadings he cannot object simply by asserting that the request calls for a conclusion of law. He should make the admission if he is able to do so and does not in good faith intend to contest the issue at trial, thereby ' "setting at rest a triable issue." ' [Citation.] Otherwise he should set forth in detail the reasons why he cannot truthfully admit or deny the request. [Citation.]" (Burke v. Superior Court of Sacramento County (1969) 71 Cal.2d 276, 282.)

"Requests for admission are not restricted to facts or documents, but apply to conclusions, opinions, and even legal questions." (City of Glendale v. Marcus Cable Associates, LLC (2015) 235 Cal.App.4th 344, 353.)

Plaintiff is required to either admit or deny each of the requests, rather than attempt to avoid providing a direct response. He will be ordered to provide further responses, without objection. To the extent any of the responses are anything other than an unqualified admission, Plaintiff will be ordered to provide a further response to FI No. 17.1.

As no monetary sanctions were requested, none will be imposed.

Judges

Judge Thomas Anderle

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